

1/5

- File No.: EXP202211073

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 19, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR and Article 13 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that they are a neighbor of a property adjacent to that of the respondent and that the respondent has installed a surveillance camera next to the division between properties, on a mast, which, due to its location and orientation, is capable of capturing images of the complainant's property, without having authorization for this. They also point out that the camera is not marked with the required informative signs of a monitored area.

They provide images of the camera's location.

The documents submitted are: - Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned with the indication of "absent delivery" on 03/11/2022.

After reiterating the forwarding on 14/11/22, it was returned by the Postal Service with the indication of "incorrect address" on 24/11/2022.

It was reiterated again to the address listed in the registry on 28/11/2022, and it was recorded as delivered on 13/12/22.

No response has been received to this forwarding letter.

C/ Jorge Juan, 6

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2/5

THIRD: On January 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 13, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated that:

"...there are two people living at this address and we are both over 60 years old and not looking for scares, so I decided to install cameras on my property as there have been several thefts in the area where I live and I have a fairly large property with somewhat flimsy fencing...

I want to clarify that, according to what I have been informed, I am not violating any law as my cameras are only focused on my property as I attach in the photos I am sending you; I also clarify that there is

no recording and that as I show you, only live images can be seen, so if there is movement on my property, I receive an alert on my mobile and I can only see if someone is there to call the police if they are breaking in.

My cameras do not point towards any public road or private property.

On the other hand, I see that you mention that I need to have identification indicating that I have a camera on my property; I have it and I attach a photo; the sign is placed at the entrance of my property..."

SIXTH: On 20/07/23, a was issued in which, after confirming that the installed cameras comply with current regulations, the filing of the procedure was proposed, with the same being published in the BOE on 25/09/23, after being returned by the Official Postal Service.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is recorded, according to the statement of the complainant, that the respondent has installed a video surveillance camera next to the division between properties, on a mast, which, due to its location and orientation, could be capable of capturing images of the complainant's property.

C/ Jorge Juan, 6

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3/5

SECOND: It is recorded, according to documentation provided by the respondent, that the camera does not record, nor does it even visualize, any area belonging to the claimant's property or to the public road.

THIRD: No recording of any private space of third parties has been confirmed.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the respondent, the following should be noted:

The respondent claims that the installation of cameras is due to security reasons, as there have been thefts in the area, but that their cameras, which do not even record images, only alert if movement is detected on their property, are solely focused on their property as observed in the attached photos.

In this regard, this Agency has examined the evidence provided, concluding that, indeed, only images of the respondent's own property are captured, without any indication, even minimally, that any other property is visualized, therefore no infringement of data protection regulations is determined.

The respondent claims that at the entrance of their home, there is a sign indicating that the area is under video surveillance, and attaches a photograph of said sign.

Article 22, section 4 of the LOPDGDD provides: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device."

III

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited

to what is necessary in relation to the purposes for which they are processed ('data minimization')." Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed towards. The relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In the present case, it has been confirmed that the field of vision of the cameras is limited to private spaces of the respondent's own property, therefore, as no infringement is observed, it is considered that the present sanctioning procedure should be archived.

IV

According to the above, after analyzing the allegations and evidence provided, it is confirmed that the installed system only captures the land area of the respondent, with the installation of the system being for security reasons for the property and its inhabitants, without any impact on third-party spaces being observed.

Finally, it is reminded that any doubts or inquiries regarding the installation of video surveillance cameras can be consulted in the Video Surveillance Guide section at www.aepd.es or by contacting the citizen service of this agency.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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5/5

FIRST: ORDER the FILE of the present procedure as no administrative infringement has been accredited in the matter at hand.

SECOND: NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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